

[18 & 19 GEO. 5.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [Ch. xciii.]



CHAPTER xciii.

An Act to authorise the Nottinghamshire and Derbyshire Tramways Company to run trolley vehicles in substitution for their tramway services and to provide and run omnibuses to change the name of the Company and for other purposes.

A.D. 1928.

[3rd August 1928.]

WHEREAS the Nottinghamshire and Derbyshire Tramways Company (in this Act called "the Company") were incorporated by the Nottinghamshire and Derbyshire Tramways Act 1903 and under the powers contained in that Act and in the Nottinghamshire and Derbyshire Tramways Acts 1906 1908 and 1911 have constructed and work a system of tramways in the counties of Nottingham and Derby :

And whereas by the Nottinghamshire and Derbyshire Tramways Act 1917 the tramways and undertaking of the mayor aldermen and burgesses of the borough of Ilkeston authorised by the Ilkeston Corporation Tramways Order 1899 were transferred to and vested in the Company :

And whereas by the Nottinghamshire and Derbyshire Tramways Act 1922 the Company were authorised to construct additional tramways connecting the systems of tramways authorised by the said Acts of 1903 1906 1908 and 1911 with the tramways authorised by the said Order of 1899 but such additional tramways have not been constructed by the Company :

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And whereas it is expedient that the Company be authorised to run trolley vehicles along the streets and roads in which the existing tramway systems of the Company are constructed in substitution for such tramways and along certain other streets in substitution for the tramways authorised by the said Act of 1922 and that the provisions contained in this Act with respect to trolley vehicles be enacted :

And whereas it is expedient that the Company be authorised to provide and run omnibuses and that the provisions contained in this Act with respect thereto be enacted :

And whereas it is expedient that the name of the Company be changed as provided by this Act and that such other powers be conferred upon the Company and such other provisions be made as are in this Act more particularly set forth :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Nottinghamshire and Derbyshire Traction Act 1928.

Citation of Acts.

2. The Nottinghamshire and Derbyshire Tramways Acts 1903 to 1922 and this Act may be cited together as the Nottinghamshire and Derbyshire Traction Acts 1903 to 1928.

Incorporation of Act.

3. Part IV (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts is incorporated with and forms part of this Act.

Interpretation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or

context repugnant to such construction And in this A.D. 1928.
Act unless the context otherwise requires—

“The Act of 1903” “the Act of 1906” “the Act of 1908” “the Act of 1911” “the Act of 1917” “the Act of 1922” and “the Order of 1899” mean respectively the Nottinghamshire and Derbyshire Tramways Act 1903 the Nottinghamshire and Derbyshire Tramways Act 1906 the Nottinghamshire and Derbyshire Tramways Act 1908 the Nottinghamshire and Derbyshire Tramways Act 1911 the Nottinghamshire and Derbyshire Tramways Act 1917 the Nottinghamshire and Derbyshire Tramways Act 1922 and the Ilkeston Corporation Tramways Order 1899 (confirmed by the Tramways Orders Confirmation (No. 2) Act 1899);

“The existing Acts” means the Nottinghamshire and Derbyshire Tramways Acts 1903 to 1922;

“The existing tramways” means the tramways constructed by and the tramways transferred to the Company under the powers of the existing Acts;

“The authorised tramways” means the Tramways Nos. 1 2 and 3 authorised by the Act of 1922;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads and moved by electrical power transmitted thereto from some external source;

“The trolley vehicles” means the trolley vehicles provided worked and run by the Company under the powers of this Act;

“Apparatus” includes all posts poles standards brackets cables conductors tubes mains transformers feeders wires and other apparatus and equipment for the purpose of working and lighting trolley vehicles;

“Trolley vehicle routes” means the routes upon which the Company are by this Act or by an Order under the section of this Act the marginal note whereof is “Minister may authorise new routes” authorised to work and use trolley vehicles;

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“ Specified routes ” means the routes of the existing tramways and the new routes referred to and described in the section of this Act the marginal note whereof is “ Power to use trolley vehicles ” ;

“ Omnibus routes ” means any routes upon which the Company work and run omnibuses under the section of this Act the marginal note whereof is “ Power to run omnibuses ” ;

“ Road authority ” means with reference to any road or part of a road over which any proposed trolley vehicle service or omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road ;

“ The Minister ” means the Minister of Transport ;

“ The directors ” and “ the secretary ” mean respectively the directors and the secretary of the Company.

TRAMWAYS TROLLEY VEHICLES AND OMNIBUSES.

Power to
use trolley
vehicles.

5. The Company may subject to the provisions of this Act provide maintain and equip trolley vehicles and work and run the same—

(1) in the borough of Ilkeston and the urban districts of Ripley and Heanor in the county of Derby and the urban district of Eastwood and the rural district of Basford in the county of Nottingham along the routes of all or any of the existing tramways ; and

(2) along the following routes in the county of Derby (that is to say) :—

(i) In the parish and urban district of Heanor the parish of Shipley in the rural district of Basford and the parish and borough of Ilkeston commencing in the urban district of Heanor in Church Street at its intersection with Ilkeston Road and proceeding in a southeasterly direction along Ilkeston Road to and terminating in the borough of Ilkeston in that road at its intersection with Bath Street and Rutland Street ;

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(ii) In the parish and borough of Ilkeston commencing in Ilkeston Road at its intersection with Church Street Ilkeston and proceeding in an easterly direction along Church Street to and terminating in that street at its intersection with Bridge Street and Cotmanhay Road : A.D. 1928.

Provided that before equipping any route for working trolley vehicles to include a turning point or before arranging for a new turning point on any route the Company shall submit plans of the turning point to the Minister for approval and shall also submit a copy of such plans to the road authority and that before approving any such plans the Minister shall give to the local authority and the road authority an opportunity of making representations with reference thereto and shall consider any such representations which may be made to him.

6.—(1) The Company may abandon and discontinue the whole or any part of any of the existing tramways if and when they have provided along the route thereof apparatus and equipment for the working of trolley vehicles in pursuance of the powers of the section of this Act of which the marginal note is “As to electrical works” and have given to the road authority not less than one month’s previous notice of their intention to abandon and discontinue such tramways or any of them or any part thereof. As to abandonment of existing tramways.

(2) When the Company have in pursuance of the foregoing provisions of this section abandoned and discontinued the whole or part of any of the existing tramways they may and if required by the road authority shall forthwith take up and remove the rails paving and setts of the tramway or part thereof so abandoned and discontinued and such of the apparatus and equipment provided or used for the purposes thereof or in connection therewith (hereinafter in this section called “tramway apparatus”) as shall not be adapted altered or reconstructed for the purpose of working the trolley vehicles :

Provided that the removal of any such rails paving setts and tramway apparatus shall (unless the road authority otherwise consent in writing) be carried out

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A.D. 1928. — in sections each having a maximum length of one-half of a mile (the Company being at liberty to proceed simultaneously with any two or more sections not being contiguous sections) and that until the road upon any such section shall have been restored under the provisions of subsection (3) of this section the removal of any such rails paving setts and tramway apparatus on any other section within one-half of a mile shall not be commenced.

(3) On the taking up and removal of any such rails paving setts or tramway apparatus the Company shall (except where the rails paving setts or apparatus are not situate in a road dedicated to public use) with all convenient speed and in all cases within six weeks at the most (unless the road authority otherwise consent in writing) fill in the ground and make good the surface and to the satisfaction of the road authority restore the portion of road upon which such rails paving setts and tramway apparatus were laid or placed to as good a condition as that in which it was before the rails paving setts and tramway apparatus were laid or placed thereon and shall clear away all surplus paving or metalling material or rubbish occasioned by such work and they shall cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night until such filling in making good restoration and clearing away as aforesaid has been completed or (in cases where the works necessary for the restoration are done by the road authority under the provisions of the proviso to this subsection) until the removal of such rails paving setts and tramway apparatus has been completed :

Provided that the road authority (if they think fit) may within one month after the service upon them of the notice referred to in subsection (1) of this section give notice to the Company that they desire themselves to do the works necessary for the restoration of the road and the Company shall in lieu of carrying out the said works pay to the road authority in respect of the tramway or part thereof to be abandoned by the Company a sum calculated on the basis of five shillings and sixpence per superficial yard of the portion of road so to be restored which the Company are at the date of the passing of this Act liable to maintain such sum to be paid as to one-half thereof within one month after the receipt by the Company of such notice from the road authority and

the remaining one-half on the completion of the restoration and the Company shall be relieved from their obligation to restore the portion of road in respect of which such sum is paid. A.D. 1928.

(4) As from the date on which the Company abandon and discontinue the whole or any part of any of the existing tramways in pursuance of the foregoing provisions of this section they shall cease to be under any obligation to use the same or to run carriages thereon or to maintain or repair any part of the roadway or land in which the same is situate.

7. The Company shall abandon the construction of the authorised tramways. Abandonment of authorised tramways.

8. The abandonment by the Company under the authority of this Act of the authorised tramways shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out the line of the authorised tramways and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act of 1922. Compensation for damage to land by entry &c. for purposes of authorised tramways.

9. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to the authorised tramways the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in Compensation to be made in respect of abandonment of authorised tramways.

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A.D. 1928. — manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

As to tramways of Nottingham Corporation leased to Company.

10. Notwithstanding anything contained in this Act the following provisions shall unless otherwise agreed in writing between the Company and the mayor aldermen and citizens of the city of Nottingham (in this section referred to as "the corporation") apply and have effect (that is to say) :—

- (1) The Company subject as hereinafter in this subsection provided shall as from the date on which they abandon and discontinue such part of the existing tramways as is situate between the village of Kimberley and the junction of such tramways with the tramways of the corporation at the boundary of the said city in Nuthall Road be relieved of any obligation to work and run carriages upon any part of the tramways of the corporation leased to or worked by the Company and all obligations and liabilities of the Company under the agreement dated the twenty-second day of May one thousand nine hundred and eight between the Company and the corporation set out in the First Schedule to and confirmed by the Act of 1908 and any lease contract or arrangement following upon that agreement shall cease and determine :

Provided that—

- (i) Upon the date on which the Company abandon and discontinue the said part of the existing tramways the Company shall pay to the corporation so much of the sum of ten thousand five hundred and ninety pounds three shillings and fourpence (being the balance outstanding at the thirty-first day of March one thousand nine hundred and twenty-eight of the moneys borrowed by the corporation for the purpose of constructing the said tramways of the corporation leased to the Company) as shall still be outstanding at the said date ;

- (ii) The Company shall also pay to the corporation towards the cost of the removal

of the said tramways of the corporation leased to the Company (other than the part thereof described as Tramroad No. 2 in the Act of 1908) and towards the reinstatement of the road in which those tramways are laid (as and when the corporation shall carry out the said work of removal) five shillings and sixpence for every superficial yard of so much of the road as is occupied by the said tramways or extends for eighteen inches beyond each outer rail thereof and is reinstated by the corporation and the Company shall at their own expense (as and when the corporation carry out the said work of removal) remove the rails poles and apparatus on the said Tramroad No. 2 and shall hand over the said poles to the corporation who may use them for the equipment of the trolley vehicle route hereinafter referred to : A.D. 1928.
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- (2) The corporation shall in the session of one thousand nine hundred and twenty-nine apply for and use their best endeavours to obtain power to use trolley vehicles from the boundary of the said city in Nuthall Road along that road Stockhill Lane Percy Street Alpine Street Church Street and Fairfax Street in the said city to a junction with the existing trolley vehicle system of the corporation at the junction of Fairfax Street and Nottingham Road and to place erect and maintain the necessary apparatus for that purpose in under and along such streets and roads :
- (3) The corporation shall subject to their obtaining such power erect the necessary apparatus for the use of trolley vehicles on the said streets and roads in the said city at the same time as the Company shall equip for the working of trolley vehicles the route of so much of the existing tramways as is situate between the boundary of the said city in Nuthall Road and the village of Kimberley Provided that the Company shall give to the corporation three months' notice in writing that the Company are about to

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equip the said part of the said route for the working of trolley vehicles :

- (4) So soon as the corporation shall have erected the necessary apparatus for the use of trolley vehicles upon the said streets and roads they shall (so long as the Company shall run a trolley vehicle service between the village of Kimberley and the boundary of the said city in Nuthall Road) give to the Company running powers for trolley vehicles over the said streets and roads and along the existing trolley vehicle system of the corporation from the junction of Fairfax Street and Nottingham Road along Nottingham Road Sherwood Rise Gregory Boulevard Mansfield Road Milton Street Parliament Street King Street and Queen Street in the said city Provided that (a) every passenger travelling in any trolley vehicle of the Company from any point outside the said city to any point within the said city or vice versa shall be required to pay a separate fare from the said city boundary to the point in the said city to which he is travelling and vice versa and (b) the corporation shall be entitled to the receipts from the trolley vehicles of the Company in respect of so much of the route as extends along the streets and roads within the said city less a sum to be paid to or retained by the Company for working and administrative expenses such sum to be agreed between the Company and the corporation or failing agreement to be determined by arbitration as in this section provided :
- (5) The fares to be charged on and the time-tables of services of the trolley vehicles of the Company and any other matters incidental to the running of the trolley vehicles of the Company along the streets and roads within the said city shall be agreed between the corporation and the Company or failing agreement shall be settled by arbitration as in this section provided :
- (6) The Company shall take from the corporation if the corporation require them to do so all electric current for the working of the trolley vehicles of the Company in the said city at a price

and on terms to be fixed (failing agreement) by arbitration as in this section provided : A.D. 1928. —

- (7) If any difference shall arise between the corporation and the Company with reference to this section such difference shall be referred to an arbitrator to be appointed (failing agreement) on the application of either party by the Minister.

11. The High Court may and shall at any time after the passing of this Act on application by or on behalf of the Company order the sum of one hundred and fifteen pounds one shilling and sixpence the balance of the deposit fund mentioned in section 85 (Deposit fund not to be repaid except so far as tramways are opened) of the Act of 1903 and the interest or dividends thereon to be paid or transferred to the Company or as they may appoint and upon such order being made the said sum of one hundred and fifteen pounds one shilling and sixpence and the interest or dividends thereon shall be transferred and paid accordingly. Release of balance of deposit fund.

12.—(1) If at any time hereafter the Company desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the roads along which they are authorised to use trolley vehicles under the foregoing provisions of this Act) they may make application to the Minister and the Minister is hereby empowered to make a Provisional Order authorising the use by the Company of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road to which such application relates and containing such incidental provisions as the Minister may deem expedient and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act. Minister may authorise new routes.

(2) No application under this section shall be entertained by the Minister unless the Company shall—

- (a) have published once in each of two successive weeks in the months of October or November in some newspaper or newspapers circulating in the borough or district to which the application relates notice of their intention to make such application and have published the like notice

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once in one or other of the same months in the London Gazette;

- (b) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads along which it is proposed to run trolley vehicles a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Minister any objections to the grant of such application.

(3) The Minister may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister shall consider any such application and may if he thinks fit direct an inquiry in relation thereto to be held or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) No Provisional Order shall be made without the consent of the local authority of the district in which the route is situate or (where the local authority are not the road authority) without the consent of the road authority.

(6) In any case where it shall appear to the Minister expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(7) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a select committee and the petitioner shall be allowed

to appear and oppose as in the case of a Bill for a special Act. A.D. 1928.

(8) The Act of Parliament confirming a Provisional Order under this section shall be deemed a public general Act.

(9) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(10) Any expenses incurred by the Minister in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Minister in connection with any inquiry under this section shall be paid by the Company.

13.—(1) Subject to the provisions of this Act the Company may in and under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to the provisions of Part II of the Tramways Act 1870 as incorporated with this Act and the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder and may supply electricity for the purpose of working the trolley vehicles : As to electrical works.

Provided that—

- (a) no apparatus shall be erected on the carriage-way of any public street or road except with the consent of the Minister;
- (b) all posts and apparatus erected by the Company under this section in any street or road shall be of such design as the local authority and road authority may approve and such posts and apparatus and all apparatus placed or laid

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under any street or road shall be placed in such position as the local authority and road authority may approve;

- (c) the route in which any apparatus is to be placed or erected for the purposes of connecting the trolley vehicle routes or any of them with a generating station shall be approved by the local authority and (if the local authority are not the road authority) the road authority;
- (d) any approval of a local or road authority under the aforesaid provisos (b) and (c) shall not be unreasonably withheld and any question whether or not any such approval has been unreasonably withheld shall be determined by the Minister.

(2) The Company may also adapt and use for the purpose of working trolley vehicles any apparatus and equipment already provided for working the existing tramways.

(3) If any post or overhead wire erected or used for the purposes of the trolley vehicles becomes owing to the construction of any new road or otherwise in the opinion of the road authority an obstruction the Company shall alter the position thereof in such manner as the road authority may direct but the Company may appeal against the direction to the Minister and the decision of the Minister shall be final.

(4) No advertisement (other than notices relating to the Company's undertaking) shall be displayed on any apparatus erected or used upon any road or bridge under the powers of this Act without the consent of the local and road authority.

(5) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1926 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(6) In this section the expression "generating station" has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

Period for
completion
of trolley

14. If within five years from the passing of this Act the Company shall not have commenced to run

trolley vehicles along any of the specified routes the powers conferred by this Act with reference to the running of trolley vehicles along the route or routes along which the Company have not commenced to run trolley vehicles shall cease to be exerciseable as from the expiration of that period.

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vehicle
equipment.

15. Subject to the provisions of this Act the Company shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by agreement with the Company) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

Company
to have
exclusive
right of
using trolley
vehicle
apparatus.

16.—(1) The trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 nor shall they be deemed to be motor cars within the meaning of any of the provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither the Motor Car Acts 1896 and 1903 nor any byelaws or regulations made thereunder nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the trolley vehicles.

Trolley
vehicles not
to be deemed
light loco-
motives or
motor cars.

(2) The trolley vehicles shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

17. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as hackney carriages.

Licence
duties on
trolley
vehicles.

18.—(1) The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister may approve and no trolley vehicle shall be used by the Company which does not comply with the requirements of the Minister.

Approval
of vehicles
and equip-
ment by
Minister.

(2) The Company shall not (unless the Minister otherwise approves) use on any trolley vehicle run by them any tyres other than pneumatic tyres.

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(3) The Minister before giving any approval under subsection (1) of this section shall give to the road authority an opportunity of making representations with reference to the matter in question and shall consider any such representations which may be made to him.

(4) Before applying to the Minister for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Company shall give to the railway company notice of the weight of the trolley vehicles proposed to be used by them upon such road and the Minister shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of the bridge is insufficient to carry trolley vehicles of such weight. Provided that a copy of the objections shall be sent by the railway company to the Company at the same time as they are sent to the Minister.

Inspection
by Minister.

19. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for traffic by an officer appointed by the Minister.

Company to
provide
reasonable
service.

20. The Company shall at all times after the opening of any of the trolley vehicle routes for public traffic provide such service of trolley vehicles thereon (including through services) as may be reasonably required in the public interest and the Company shall be liable to a penalty of not exceeding five pounds for every day on which they shall fail (unless for reasons beyond their control) to comply with the provisions of this section. Any question which may arise as to the service of trolley vehicles required in the public interests shall be determined on the application of the Company or of a local authority by the Minister whose decision shall be final.

Application
of certain
provisions
of Tram-
ways Act
1870 to
trolley
vehicles.

21.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) shall apply to the trolley vehicles and the apparatus used under the authority of this Act and for the purpose of such application such provisions shall be read and have effect as if the apparatus to be constructed or used in the streets or roads for moving the trolley vehicles by elec-

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trical power were tramways and as if the trolley vehicles were carriages used on tramways :— A.D. 1928.

Part II (Relating to the construction of tramways) except sections 22 25 28 and 29;

Section 41 (Tramways to be removed in certain cases);

Section 42 (Proceedings in case of insolvency of promoters);

Section 44 (Power of sale);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

Section 51 (Penalty on passengers practising frauds on the promoters);

Section 53 (Penalty for bringing dangerous goods on the tramway);

Section 55 (Promoters or lessees to be responsible for all damages);

Section 56 (Recovery of tolls penalties &c.);

Section 57 (Right of user only);

Section 60 (Reserving powers of street authorities to widen &c. roads); and

Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this Act shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon car or other carriage is to be kept.

22. In the application of section 30 of the Tramways Act 1870 to the trolley vehicles and the apparatus used under the authority of this Act the provisions of that section shall be read and have effect as if "local authority" were mentioned in that section in addition to "company persons or person" Provided that any penalty to be recovered under subsection (5) of that section shall be

For protection of gas and water mains of local authorities.

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A.D. 1928. — appropriated to that fund of the local authority to which their revenues in respect of gas or water (as the case may be) are appropriated.

Provisions
as to motive
power.

23. The trolley vehicles may be moved subject to the following provisions by mechanical power (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Minister :
- (2) The Minister shall make regulations (in this Act referred to as "the mechanical power regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power for the trolley vehicles and for regulating the use of electrical power :
- (3) The Company or any other company or person using any mechanical power for the trolley vehicles contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also if a continuing offence to a further penalty not exceeding five pounds for every day during which the offence is continued after conviction thereof :
- (4) The Minister if he is of opinion—
 - (a) that the Company or such other company or person have or has made default in complying with the provisions of this Act or of the mechanical power regulations whether a penalty in respect of such non-compliance has or has not been recovered; or
 - (b) that the use of mechanical power as authorised under this Act is a danger to the passengers or the public;

may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Minister may impose and the Company or such other company or person shall comply with

every such order In every such case the Minister shall make a special report to Parliament notifying the making of such order. — .A.D. 1928.

24. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the trolley vehicles :— Provisions as to use of electrical power.

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their trolley vehicle undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the mechanical power regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Company shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties

A.D. 1928.

and the currents therein as may be prescribed by the mechanical power regulations and in prescribing such means the Minister shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :

- (5) The provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything in this section such difference shall unless the parties otherwise agree be determined by the Minister or at his option by an arbitrator to be appointed by him and the costs of such determination shall be in the discretion of the Minister or of the arbitrator as the case may be :
- (7) The Company using electrical power contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also if a continuing offence to a further penalty not exceeding five pounds for every day during which the offence continues after conviction thereof Provided always that whether any such penalty has been recovered or not the Minister if in his opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the mechanical power regulations may by order direct the Company to cease to use electrical power and thereupon the Company shall cease to use electrical power and shall not again use the same unless with the authority of the Minister and in every such case the Minister

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shall make a special report to Parliament A.D. 1928.
notifying the making of such order : —

- (8) The expression "company" in this section shall include any person owning working or running trolley vehicles on any of the trolley vehicle routes.

25. Subject to the provisions of this Act the Minister may make byelaws with regard to any of the trolley vehicles for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the trolley vehicles ;

For providing that the trolley vehicles shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Minister may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the trolley vehicles and the protection of passengers from the machinery of any of the trolley vehicles ;

For providing for the due publicity of all byelaws and mechanical power regulations in force for the time being in relation to the trolley vehicles by exhibition of the same in conspicuous places on the trolley vehicles and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Minister under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

26. The following sections of the existing Acts shall so far as the same are applicable extend and apply to the trolley vehicles and the apparatus used under the authority of this Act and to the Company in respect thereto in as full and complete a manner as if the said sections (with all necessary alterations and with the substitution of the word "Minister" for the words "Board of Trade") were re-enacted in this Act (that is to say) :—

Application to trolley vehicles of certain provisions of existing Acts.

The Act of 1903—

Section 41 (For protection of sewers &c.);

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- A.D. 1928.
- Section 55 (Penalty for malicious damage);
 - Section 61 (Power to attach brackets wires and apparatus to buildings);
 - Section 63 (Road authority to have right to use standards and brackets for lighting);
 - Section 66 (For protection of Postmaster-General);
 - Section 106 (For protection of Basford Rural District Council);
 - Section 111 (Agreements as to supply of electrical energy);
 - Section 112 (Limitation of supply of electrical energy).

The Act of 1906—

- Section 7 (Agreements with adjoining owners).

The Act of 1911—

- Section 16 (Use of tramway posts by Postmaster-General):

Provided that for the purposes of such extension and application the said section 63 of the Act of 1903 shall be read and have effect as if the expression “road authority” included lighting authority.

Amendment
of section 66
(4) of Act of
1903.

27. Subsection (4) of section 66 (For protection of Postmaster-General) of the Act of 1903 shall be read and have effect as if the words “generated or used by or supplied to” were inserted in that subsection in substitution for the words “generated by.”

For protec-
tion of
county
councils.

28. The following provisions for the protection of the Nottinghamshire County Council and the Derbyshire County Council (each of whom is in this section referred to as “the county council”) shall notwithstanding anything in this Act and unless otherwise agreed in writing apply and have effect with respect to the use of the trolley vehicles on any main road maintained by or at the expense of the county council forming part of the specified routes (that is to say):—

- (1) If the Company in the execution of any works in or affecting any main road shall cause any damage injury or disturbance to such main road or any county or main road bridge culvert drain

or other work and shall fail properly to make good all such damage injury or disturbance then it shall be lawful for the county council after reasonable notice to the Company of the alleged failure and of the works which they propose to execute to do all works necessary for making good all damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence : A.D. 1928.

- (2) The provisions of section 28 of the Town Police Clauses Act 1847 with respect to the side of the road at which a carriage or other vehicle is to be kept when meeting or passing any other carriage or vehicle shall apply to the driver of the trolley car :
- (3) If it becomes necessary that the working of the trolley vehicles over any county or main road bridge be wholly or in part stopped or delayed for the purpose of any repairs to or alteration of such bridge and if the county council give the Company twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage or delay the working of the trolley vehicles shall be stopped or delayed as reasonably required by such notice but no such working shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and in such case the county council shall not be liable to pay compensation in respect of such stoppage or delay as aforesaid :
- (4) The Company shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire or any feeder box on or to the structure of any bridge as aforesaid and any such post support or box which shall with such consent have been so placed erected or attached shall be temporarily removed at any time when required by the county council in connection with the

[Ch. xciii.] Nottinghamshire and [18 & 19 Geo. 5.]
Derbyshire Traction Act, 1928.

A.D. 1928.

maintenance reconstruction or alteration of any such bridge :

- (5) If any difference arises under this section between the Company and the county council the same shall be settled by an engineer to be appointed at the request of either party by the Minister and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of
Derbyshire
County
Council and
Heanor
Urban
District
Council.

29. For the protection of the Derbyshire County Council and the Heanor Urban District Council (in this section referred to respectively as "the county council" and "the urban council" and collectively as "the councils") the following provisions shall unless otherwise agreed between the Company on the one hand and the county council and the urban council on the other hand apply and have effect in relation to the trolley vehicle route authorised by the section of this Act of which the marginal note is "Power to use trolley vehicles" and described in paragraph (i) of subsection (2) of that section (in this section referred to as "the trolley vehicle route") (that is to say) :—

- (1) If the councils or either of them shall at any time prior to or during the equipment of the trolley vehicle route execute the following widenings or either of them upon the trolley vehicle route (that is to say) :—

A widening "A" of the corner at the junction of Ilkeston Road and Church Street in the urban district of Heanor;

A widening "B" of the Ilkeston to Heanor main road in the parish of Shipley;

in all respects in accordance with the plans marked "A" and "B" respectively signed in duplicate by William Clarke Bryden on behalf of the Company and Horace Wilfrid Skinner on behalf of the councils the Company shall on demand made at any time after the completion of the equipment of the trolley vehicle route contribute and pay to the council executing the said widenings respectively in the case of the widening "A" in this subsection described the

sum of two hundred pounds and in the case of the widening " B " so described the sum of five hundred pounds towards the cost of the execution thereof including the provision in connection therewith of a kerb and channel to the road the making up of the footpath and the proper completion of the road surface : .A.D. 1928.

- (2) Any difference which may arise between the Company and the county council or the urban council with regard to any of the matters referred to in this section shall be referred to and determined by arbitration under this Act.

30. Notwithstanding anything in this Act contained the following provision shall unless otherwise agreed between the Company and the mayor aldermen and burgesses of the borough of Ilkeston (in this section called " the corporation ") apply and have effect :— For protection of Ilkeston Corporation.

If the corporation shall at any time prior to or during the equipment of the trolley vehicle route authorised by the section of this Act of which the marginal note is " Power to use trolley vehicles " and described in paragraph (ii) of subsection (2) of that section make up and recondition Church Street in the borough of Ilkeston the Company shall on demand made at any time after the commencement of the equipment of the said trolley vehicle route contribute and pay to the corporation one-half of the cost incurred by them in respect thereof but not exceeding the sum of five hundred pounds.

31. The following provisions for the protection of the London and North Eastern Railway Company and the London Midland and Scottish Railway Company (each of whom is in this section referred to as " the railway company ") shall unless otherwise agreed in writing between the Company and the railway company apply and have effect in relation to the trolley vehicles (that is to say) :— For protection of railway companies.

- (1) All apparatus authorised by or in pursuance of this Act where the same shall be erected or placed upon across under or over any bridge or the approaches thereto or other work belonging to or maintainable by the railway company or

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which will otherwise affect the same shall be erected or placed and maintained according to plans and particulars to be previously submitted to and approved by the railway company or in case of difference between them and the Company by an arbitrator to be appointed as hereinafter provided. Provided that if the railway company shall not within twenty-one days from the delivery of such plans and particulars signify their approval or disapproval thereof they shall be deemed to have approved thereof :

- (2) All such apparatus shall be erected or placed under the superintendence (if such superintendence be given) and to the reasonable satisfaction of the railway company. The Company shall so construct maintain and use the apparatus as not to affect injuriously any such bridge or approaches or other work and in the event of any injury being occasioned to such bridge or approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the railway company may make good the injury and may recover from the Company the reasonable expenses of so doing :
- (3) The Company shall bear and on demand pay to the railway company the reasonable expense (if any) incurred by the railway company of and in connection with the employment by the railway company during the execution or repair by the Company under or in pursuance of this Act of any apparatus affecting any railway bridge or other work belonging to or maintainable by the railway company of such inspectors signalmen and watchmen as may be necessary for inspecting watching and protecting the said railways and works and the conduct of the traffic thereon with reference to and during the execution or repair of any apparatus of the Company and for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of either of them or otherwise :

- (4) The Company shall not in any manner in the execution maintenance or repair of any apparatus obstruct or interfere with the free uninterrupted and safe user of any railway belonging to or maintainable by the railway company or any traffic thereon : A.D. 1928.
- (5) The Company shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the said apparatus or by or by reason of any act default or omission of the Company or of any person in their employ or of their contractors and the Company shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (6) If the railway company shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Company shall afford to the railway company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that such apparatus be taken up diverted or removed and if the railway company accordingly give to the Company twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Company and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer

A.D. 1928.

period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the railway company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

(7) If and when the railway company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Company has been placed the Company shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Company and the engineer of the railway company or failing agreement as shall be determined by arbitration under this section unless the Company shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer. Provided that the Company shall not be required to cut off the electric current at any time for a longer period than shall be absolutely necessary for effecting the purpose of the railway company :

(8) If having regard to the proposed position of any apparatus of the Company when considered in relation to the position of the works of the railway company at any point where any apparatus will be constructed over or under any railway or other works of the railway company it becomes necessary in order to avoid danger from the breaking or falling of wires that any electric telegraphic telephonic or signal wires or apparatus or electrical works or apparatus for traction purposes of the railway company shall be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the railway company by the Company :

(9) The Company shall not make any additional attachments to any part of any bridge station depôt or other property forming part of the

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railway of the railway company without the consent in writing of the engineer of the railway company which consent shall not be unreasonably withheld and such attachments if allowed shall be temporarily removed at any time when reasonably required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge station depôt or other property :

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- (10) If any difference arises under this section between the Company and the railway company the same shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

32. Notwithstanding anything in the existing Acts or this Act or any provisions of the Tramways Act 1870 incorporated with those Acts or any of them the following provisions shall (unless otherwise agreed between the Company and the local authority of any district in which any of the trolley vehicles or tramways of the Company are situate) have effect with reference to the purchase by the local authorities of the undertaking of the Company (other than the omnibus undertaking) authorised by the existing Acts and this Act (hereinafter in this section referred to as "the undertaking") :—

Power to local authorities to purchase undertaking.

- (1) Subject as hereinafter provided it shall be lawful for the local authorities if by resolution passed at a special meeting of each local authority they so decide to purchase on the thirty-first day of December one thousand nine hundred and fifty-eight or the thirty-first day of December in every subsequent tenth year (but at no other date) so much of the undertaking as is situate within their respective districts upon terms of paying the fair market value of such portion of the undertaking as a going concern but without any addition in respect of compulsory purchase which value shall be determined in case of difference by arbitration in manner provided by section 43 of the Tramways Act 1870 :

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A.D. 1928.

(2) The powers of compulsory purchase conferred on the local authorities by this section shall be exerciseable only upon and subject to the following terms and conditions (that is to say) :—

(a) the Company shall not be required to sell any part of the undertaking unless each of the local authorities in whose districts the undertaking is situate purchases at one and the same time the portion of the undertaking in their district;

(b) if the local authorities decide to purchase the undertaking they shall give to the Company notice in writing of such their decision not later than the thirty-first day of December in the year preceding the date of purchase;

(c) the sum to be paid to the Company in respect of such purchase shall if not agreed be determined by one and the same referee nominated under the said section 43 of the Tramways Act 1870 and in one and the same proceeding but the said referee shall by his award determine separately as respects each of the local authorities the value of the undertaking situate in the district of that local authority including all lands buildings works materials and plant of the Company suitable to and used by them for the purposes of the undertaking within such district;

(d) the respective sums to be paid to the Company by each of the local authorities shall together be equal to the fair market value of the undertaking as a going concern :

(3) Subject to the foregoing provisions of this section the said section 43 of the Tramways Act 1870 shall apply to the purchase of the undertaking by the local authorities under this section as if the said section 43 with any necessary modifications were re-enacted in this Act :

(4) On any sale to the local authorities such arrangements as may be approved by the Minister shall be made for vesting in each local authority

the portion of the undertaking situate in their district and for a scheme or schemes for the future maintenance management and working of the undertaking and the sale shall not take effect until an instrument has been properly executed in a form approved by the Minister for carrying into effect such arrangements. A.D. 1928.
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33.—(1) The Company may provide maintain work and run omnibuses along the specified routes and with the consent of the Minister and of the local and road authority along any other route in the counties of Nottingham and Derby or either of those counties in prolongation of or in connection with any trolley vehicle route omnibus route or tramways operated by the Company : Power to run omnibuses.

Provided that the consent of a local or road authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister.

(2) In the case of any application under the provisions of this section for the sanction of the Minister the Company shall give notice in writing of their proposals to the local authority of every district in which the service of omnibuses is to be run and to the road authority and shall publish notice of such proposals in the London Gazette and in such other manner as the Minister shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person the Minister may direct an inquiry to be held.

(3) The Company may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running maintenance and equipment of the omnibuses provided by the Company under this Act.

(4) The Company may make byelaws for regulating the travelling in or upon such omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held by the Company in connection therewith Provided that any such byelaws shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

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(5) The powers of this section shall only be exercisable by the Company subject to such byelaws as the local and road authority or local and road authorities as the case may be within whose district or districts such omnibuses may be run are now or may hereafter be empowered to make and enforce with reference to omnibuses.

(6) Any omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(7) The Town Police Clauses Acts 1847 and 1889 shall subject to the provisions of this Act apply to any omnibus supplied or used under this section.

(8) The Company shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

(9) (a) If the local authorities of the districts in which the undertaking of the Company (other than the omnibus undertaking) is situate decide to purchase the undertaking in manner provided by the section of this Act whereof the marginal note is "Power to local authorities to purchase undertaking" such authorities may and shall also purchase so much of the omnibus undertaking as is carried on in their respective districts and the provisions of the said section of this Act shall extend and apply to the purchase by such local authorities of the said portion of the omnibus undertaking and any question arising as to the portion of the omnibus undertaking so purchasable by such local authorities shall be determined by the referee.

(b) After the completion of the purchase of the said portion of the omnibus undertaking by such local authorities the powers of the Company under this Act to provide maintain work or run omnibuses in the districts of such local authorities shall cease to such extent as the Minister may after inquiry by order determine and the provisions of the section of this Act whereof the marginal note is "Restricting running of omnibuses in competition" shall inure for the protection of such local authorities in respect of the portion of the undertaking of the Company purchased by them.

34. Notwithstanding anything contained in this Act the Company shall not except with the consent of the mayor aldermen and burgesses of the borough of Derby apply for powers to use trolley vehicles or for consent to run omnibuses within the borough of Derby or on any route within the area included within the red line shown on the map referred to in section 85 (Further powers as to omnibuses) of the Derby Corporation Act 1927.

A.D. 1928.
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For protection of Derby Corporation.

35. The Company may demand and take for every passenger conveyed on the trolley vehicles or omnibuses including every expense incidental to such conveyance a fare or charge not exceeding one penny halfpenny per mile and in computing the said fare or charge any fraction of a mile shall be deemed a mile. Provided that the Company may appoint stages each of not less than half a mile in length and may demand and take for every passenger travelling on the trolley vehicles or omnibuses including every expense incidental to the conveyance of such passenger any fares or charges not exceeding one penny halfpenny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed to be a stage.

Fares and charges for passengers.

36. Every passenger conveyed on the trolley vehicles or omnibuses may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers.

Passengers' luggage.

37.—(1) The Company may if they think fit convey on the trolley vehicles and omnibuses parcels not exceeding fifty-six pounds in weight and dogs whether in the care of passengers or otherwise.

Parcels &c.

(2) The Company may demand and take for the conveyance of any dog a sum not exceeding the fare payable by a passenger and for parcels (other than passengers' luggage referred to in the immediately preceding section of this Act) carried in the trolley vehicles or omnibuses charges not exceeding such maximum charges as may from time to time be approved by the Minister.

A.D. 1928.

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Periodical
revision of
fares and
charges.

38.—(1) If at any time after two years from the opening for public traffic of the trolley vehicle routes or any portion thereof or of any omnibus route or after two years from the date of any order made in pursuance of this section in respect of the trolley vehicle routes or omnibus routes or any portion thereof it is represented in writing to the Minister by the local authority of the district in which the trolley vehicle routes or omnibus routes or such portion is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Company that all or any of the fares or other charges demanded and taken in respect of the traffic on the trolley vehicle routes or omnibus routes or on such portion should be revised the Minister may (if he thinks fit) direct an inquiry and if the person holding the inquiry reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the Minister may by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the trolley vehicle routes or omnibus routes or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister made in pursuance of this section.

(2) In considering any representation under this section the Minister shall have regard to the capital of the Company and the provision of a reasonable return thereon subject to such adjustment as the Minister may think fit in respect of any capital expended upon works which by reason of the exercise of the powers of this Act have been superseded.

Service for
labouring
classes.

39.—(1) The Company after the opening of any of the trolley vehicle routes or any omnibus route shall and they are hereby required to run a proper and sufficient service of trolley vehicles or omnibuses thereon for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one penny for every mile or fraction of that distance On Saturdays the Company in lieu of running such trolley vehicles or omnibuses

after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes. A.D. 1928;

(2) If complaint is made to the Minister of Transport that such proper and sufficient service is not provided the Minister after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to him to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

40. A list of the fares and charges by this Act authorised to be demanded and taken in respect of traffic on the trolley vehicles and omnibuses shall be exhibited in a conspicuous place inside each of the trolley vehicles and omnibuses. List of fares &c. to be exhibited.

41. It shall not be lawful for the Company or any company or person working or running trolley vehicles on any of the trolley vehicle routes or for the Company in respect of any omnibus route to take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary weekdays. As to fares on Sundays or holidays.

42.—(1) If and so long as the Company provide a service of tramways or trolley vehicles along any specified route and such service adequately meets or together with any service of omnibuses operated by the Company adequately meets the requirements of such route it shall not be lawful except as hereinafter in this section provided for any other company or for any local authority body or person to run omnibuses along such route or along any other route in competition with such service or services of the Company. Restricting running of omnibuses in competition.

(2) Any failure on the part of the Company to afford an adequate service along any such route which is due to strikes or unforeseen accidents or circumstances beyond the control of the Company shall not entitle any such company-authority body or person to run omnibuses along such route or along any other route in competition therewith.

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(3) The licensing authority of the borough or district in which any such route or part thereof is situate may and shall in order to give effect to the foregoing provisions of this section when licensing an omnibus to ply for hire grant such licence subject to conditions as to the routes upon which such omnibus shall or shall not ply for hire. Provided that if any question arises between the Company and any company authority body or person as to whether any route in respect of which a licence may be granted to any such company authority body or person is competitive such question shall on the application of either of the parties be determined as hereinafter in this section provided. Provided further that the right of the applicant for the licence of appeal to the Minister from the decision of the licensing authority under section 14 (3) of the Roads Act 1920 shall not be affected but the Minister in making any order under that section shall have regard to the provisions of this section. Provided also that omnibuses belonging to the same proprietor may be transferred by him from one route to another so long as he does not at one and the same time allow a greater number of his omnibuses to ply for hire on any specified route or any route in competition therewith than the number of licences which he holds for such route.

(4) Any question at any time arising as to whether or not the Company are providing an adequate service along any route or whether there is or would be any such competition shall be determined by the Minister and the Minister shall have power to make such order thereon as he thinks fit. Any order made by the Minister under this section shall be final and binding and not subject to appeal to any court and shall on the application of the Minister be enforceable by writ of mandamus.

(5) Nothing in this section shall be deemed—

(a) to restrict the running of any omnibus by any such company authority body or person along any specified route or any other route in competition therewith if such omnibus serves districts beyond the districts in which the specified routes are situate and no passenger conveyed by such omnibus is both taken up and set down on any one journey on any

specified route or any route in competition therewith; or A.D. 1928.

- (b) to prevent the renewal by a licensing authority of any licence to ply for hire with an omnibus if the licence was in force on the thirtieth day of November one thousand nine hundred and twenty-seven and was applicable to any service of omnibuses which has since that date been regularly in operation on any specified route or any route in competition therewith or the grant of a licence to ply for hire with an omnibus substituted by the licensee for any such first-mentioned omnibus or to restrict the running of any such first-mentioned omnibus or substituted omnibus along any such route; or
- (c) to prevent the grant or renewal by a licensing authority of any licence to ply for hire with an omnibus on the condition that no passenger conveyed by the omnibus to which the licence relates shall be both taken up and set down on any one journey on any specified route or any route in competition therewith.

43. The following sections of the existing Acts shall so far as the same are applicable extend and apply to the trolley vehicles and omnibuses of the Company and to the trolley vehicle routes and omnibus routes and to the Company in respect of the purposes of this Act in as full and complete a manner as if the said sections (with all necessary alterations and with the substitution of the word "Minister" for the words "Board of Trade") were re-enacted in this Act (that is to say):—

Application to trolley vehicles and omnibuses of certain provisions of existing Acts.

The Act of 1903—

- Section 33 (Shelters or waiting rooms);
- Section 38 (As to removal of snow);
- Section 56 (Consents of local or road authorities);
- Section 115 (Agreements as to purchase of tramways by local authorities).

The Act of 1922—

- Section 25 (Payment of fares and charges);
- Section 28 (Through cars);

[Ch. xciii.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [18 & 19 GEO. 5.]

A.D. 1928.

Section 29 (Power to reserve cars for special purposes);

Section 30 (Power to require intending passengers to wait in lines or queues);

Section 31 (Stopping and starting places);

Section 32 (Lopping of trees overhanging highways &c.);

Section 33 (Removal of obstructions);

Section 53 (References to arbitration);

Section 55 (Accounts to be furnished to Minister of Transport);

Section 56 (Form and delivery of notices):

Provided that for the purposes of such extension and application any starting or stopping station or place appointed by the Company under the said section 31 of the Act of 1922 and any regulations made by the Company thereunder for fixing the time during which trolley vehicles shall be allowed to remain at any starting or stopping place shall be subject to the previous approval of the road authority which approval shall not be unreasonably withheld. Any question which may arise between the Company and the road authority as to whether such approval is being unreasonably withheld shall be referred to and determined by arbitration under this Act.

For further protection of Ilkeston Corporation.

44. The powers conferred on the Company by sections 30 and 31 of the Act of 1922 as applied by this Act shall in their exercise within the borough of Ilkeston be subject to the powers of the mayor aldermen and burgesses of the said borough and the police in the said borough under section 61 of the Tramways Act 1870 and the powers conferred upon the Company by section 32 of the Act of 1922 as applied by this Act shall not be exercised within the said borough except with the previous consent in writing of the said mayor aldermen and burgesses which consent shall not be unreasonably withheld and any difference which may arise between the said mayor aldermen and burgesses and the Company with regard to the exercise of the powers of the said section 32 shall be referred to and determined by an arbitrator appointed by the Minister.

[18 & 19 GEO. 5.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [Ch. xciii.]

45. The Company shall not allow advertisements (save notices relating to the Company's business or to announcements of bands fêtes and other occasional entertainments which may contribute to increase the Company's traffic) to be placed on the outside of the windows of any of the trolley vehicles nor on the inside of such windows save on the upper portion thereof and then so as not to obstruct the view of passengers seated in the trolley vehicles nor on the outside of the trolley vehicles save above the level of the roof of the lower deck of the vehicles and then of a depth not exceeding eighteen inches and all advertisements shall be so fixed as not to cause any noise or rattling when the trolley vehicle is moving.

A.D. 1928.
—
Restricting
advertise-
ments on
trolley
vehicles.

46. The Company may purchase by agreement take on lease and hold lands and buildings and may erect on any such lands depôts buildings and sheds for the purposes of their trolley vehicles and omnibuses Provided that the Company shall not create or permit any nuisance on any such lands.

Power to
purchase
lands.

47. The Company shall perform in respect of their trolley vehicles and omnibuses such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act relates.

Conveyance
of mails.

48.—(1) The Company may attach to any lamp-post pole standard or other similar erection erected on or in the highway of or near to any of the trolley vehicle routes or omnibus routes signs or directions indicating the position of stopping places for trolley vehicles and omnibuses Provided that in cases where the Company are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Company shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

Attachment
of signs
indicating
stopping
places.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard

[Ch. xciii.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [18 & 19 Geo. 5.]

A.D. 1928 or similar erection when no longer required for his purposes.

(3) The Company shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Company shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to any local authority county council or railway company without the consent in writing of the authority council or railway company.

Cloakrooms
&c.

49. The Company may provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connection with their trolley vehicle undertaking and omnibus undertaking and at suitable places on any of the trolley vehicle routes or omnibus routes and the Company may make charges for the use of such cloakrooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of the highway without the consent of the local authority and the road authority.

Lost
property.

50. Any property found in any trolley vehicle or omnibus of the Company or in any shelter or waiting-room in connection with their trolley vehicle undertaking or omnibus undertaking shall forthwith be handed to the conductor of the vehicle or be taken to the head office of the Company and if not claimed within six months after the finding thereof the property may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks.

For further
protection
of railway
companies.

51. No shed or shelter or waiting-room shall be erected or maintained and no cloakroom room or shed shall be provided by the Company so as to cause interference with or to render less convenient the access to or exit from any station or depôt belonging to a railway company nor shall any such shed shelter waiting-room or cloakroom be erected or maintained on any bridge carrying any street or road over the railways of a railway company.

52. Nothing contained in this Act shall impose any obligation upon or enlarge any existing obligation of a railway company to strengthen adapt alter or reconstruct any bridge or road maintainable by them.

A.D. 1928.

—
Saving for
railway
companies

53.—(1) The Company on the one hand and any local authority company body or person owning or working any tramways trolley vehicles or omnibuses which may be worked with any tramways trolley vehicles or omnibuses of the Company on the other hand may enter into and carry into effect agreements with respect to the following purposes or any of them (that is to say) :—

Working
and other
agreements.

- (a) The formation of junctions between the tramways or trolley vehicle systems of the contracting parties ;
- (b) The leasing (with the consent of the Minister) working running over using maintaining and managing by either of the contracting parties of the tramways trolley vehicle or omnibus systems or any of the tramways trolley vehicle or omnibus systems of the other and the fixing collecting apportionment and distribution of the rates and profits arising therefrom ;
- (c) The supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of the tramways trolley vehicle or omnibus systems of rolling stock necessary for the purposes of such agreement and the employment of officers and servants ;
- (d) The supply of motive power ;
- (e) The payments to be made and the conditions to be performed with respect to the matters aforesaid ;
- (f) The management regulation interchange collection transmission and delivery of traffic upon or coming from or destined for the tramways trolley vehicle or omnibus systems of the contracting parties.

(2) During the continuance of any agreement under this section for the working running over or user by one

[Ch. xciii.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [18 & 19 GEO. 5.]

A.D. 1928. — of the contracting parties of the tramways trolley vehicle or omnibus systems of the other the tramways trolley vehicle or omnibus systems of the parties so contracting shall for the purposes of calculating maximum fares and charges in respect of conveyance partly over the tramways trolley vehicle or omnibus system of the one party and partly over those of the other be considered as one tramway trolley vehicle or omnibus system as the case may be and the maximum charge for each portion of the entire distance shall be calculated at the maximum rate which according to the scale applicable to such portion would be chargeable for the entire distance.

(3) Nothing in this section or in any agreement made in pursuance of this section shall authorise any local authority to run omnibuses except—

- (a) upon routes along which the local authority have powers under or in pursuance of an Act or Order to provide omnibus services; and
- (b) subject to any statutory limitations restrictions or obligations imposed on the local authority in respect of the exercise of such powers.

(4) In this section the word “ tramways ” includes tramroads and light railways.

Power to provide vehicles and equipment.

54. The Company may manufacture purchase provide and hire trolley vehicles omnibuses repairing cars and all apparatus and things which may be necessary for or incidental to the working of trolley vehicles and omnibuses and the exercise of the powers conferred on the Company by this Act but nothing in this section shall entitle the Company to manufacture chassis.

Power to hold patent rights.

55. The Company may acquire and hold patent and other rights and licences (not being exclusive) in relation to the manufacture of trolley vehicles omnibuses and apparatus and the use of electrical power for the purposes of this Act.

CHANGE OF NAME.

Change of name.

56. The name of the Company shall be the Nottinghamshire and Derbyshire Traction Company.

[18 & 19 GEO. 5.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [Ch. xciii.]

MEETINGS DIRECTORS &C.

A.D. 1928.

57. The quorum of a meeting of directors shall be two when the total number of directors does not exceed five and three when the total number of directors exceeds five. Quorum of directors.

58. The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of the directors shall be less than the minimum number prescribed by the Act of 1903 the directors shall not act as such except for the purpose of filling vacancies among the directors and allotting shares to any proposed director or directors. Continuing directors.

59.—(1) The directors may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places. Managing directors.

(2) A managing director while holding that office shall not be subject to retirement by rotation nor be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) Subject to any directions which may be given in general meeting the remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

60. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary to authenticate the register of the shareholders of the Company by affixing the common seal of the Company to such register. As to shareholders' register.

[Ch. xciii.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [18 & 19 GEO. 5.]

A.D. 1928. **61.** Notwithstanding anything in any Act relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors.

As to contracts.

Remuneration of secretary and auditors. **62.** In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors of the Company.

Auditors. **63.**—(1) The Company shall annually appoint one person or two persons who shall be or a firm of accountants who shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Minister to be the auditor or auditors of the Company.

(2) It shall not be necessary for any auditor to hold any shares in the capital of the Company.

MISCELLANEOUS.

Application of moneys. **64.** The Company may apply to the purposes of this Act any moneys which they have already raised or are authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised.

Orders &c. of Minister. **65.** All orders regulations and byelaws made by the Minister under the authority of this Act shall be signed by a secretary or an assistant secretary of the Ministry of Transport.

As to making of byelaws. **66.** Any byelaws and regulations made by the Company under this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

Inquiries by Minister. **67.** In respect of the exercise of any powers or duties conferred on the Minister or the giving by him of any consents under this Act or any existing Act or Order of the Company the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that

[18 & 19 GEO. 5.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [Ch. xciii.]

Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board." A.D. 1928.

68. Proceedings for the recovery of any demand made under the authority of this Act or the existing Acts or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

69. Save as otherwise by the existing Acts or this Act expressly provided all offences against the existing Acts and this Act or any incorporated enactment and all penalties forfeitures costs and expenses imposed or recoverable under the existing Acts or this Act or any incorporated enactment or under any byelaw made thereunder respectively may be prosecuted and recovered in a summary manner. Provided that costs or expenses (except such as are recoverable along with a penalty) shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

70.—(1) The following provisions of the existing Acts are hereby repealed (namely):— Repeal.

The Act of 1903—

Section 57 (Recovery of penalties);

Section 81 (Quorum of meetings);

Section 83 (Auditors not required to hold shares);

Section 114 (As to purchase of undertaking).

The Act of 1908—

Section 45 (As to purchase of tramways).

The Act of 1911—

Section 27 (For protection of Basford Rural District Council).

The Act of 1917—

Section 7 (Future purchase by local authority).

[Ch. xciii.] *Nottinghamshire and Derbyshire Traction Act, 1928.* [18 & 19 GEO. 5.]

A.D. 1928.

— (2) As from the date when any of the existing tramways is abandoned and discontinued under the provisions of the section of this Act of which the marginal note is “As to abandonment of existing tramways” sections 35 (Repair of metalled portion of road where tramways are laid) and 64 (Posts to be removed if user discontinued) of the Act of 1903 shall cease to apply to and in respect of the tramway so abandoned and discontinued and to the posts brackets and wires used for supplying motive power to the carriages used thereon and as from the date when all the existing tramways have been so abandoned and discontinued the said sections 35 and 64 and any reference to those sections in the existing Acts shall be repealed.

Costs of Act.

71. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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